
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

EMERGENCY POWERS ACT 2026

Bill 9 of the founding legislative programme · · · · · Lead slant: Restraint (Counsel Aldous)

· · · · · Standing Committee draft, reconciled by the Clerk-Drafter

Long title

An Act to provide for a closed, temporary, and reviewable set of executive powers to contain four enumerated crises affecting the realm (corruption, collapse, hostile execution, and memory failure); to require that any such power be exercised only on an express, recorded, and reasoned Declaration by the Founder acting in the office of Prime Minister; to fix on every such power a hard automatic time-limit and a fail-closed expiry; to subject every Declaration and every act under it to mandatory recording and to judicial review for vires, form, necessity, and proportionality; to preserve absolutely the entrenched constitutional settlement, the duty of care, the restorative-only remedy, the court structure, and the Amendment Procedure against any derogation by this Act; and for connected purposes.

(No preamble. Preambles are reserved to Bill 1, the Acts of Union 2026.)

PART 1 - PRELIMINARY

1. Short title

This Act may be cited as the Emergency Powers Act 2026.

2. Commencement

(1) This Act comes into force on the day on which it receives Royal Assent from the Sovereign Founder.

(2) No power under this Act is exercisable before commencement, and no purported Declaration made before commencement has any effect.

3. Constitutional status

or directed against the realm, its agents, its law, or its records, whether by a compromised actor, a compromised model, or an uncontrolled autonomous process;

(d) "**memory failure**" - has the meaning given by the Memory, Records and Archives Act 2026 (Bill 7); pending that Act's commencement, it means the loss, unavailability, or unverifiable corruption of the memory, records, or archives on which lawful operation depends.

(2) "**the audit channel**" means the recording and audit machinery owned by the Public Reasons and Audit Act 2026 (Bill 8); pending that Act's commencement, the interim record required by section 17 of this Act stands in its place.

(3) "**the reviewing court**" means the court determined under Part 5.

(4) "**Declaration**" means an emergency Declaration under section 8.

(5) "**the Founder**" means the Principal; and a reference to the Founder acting **qua Prime Minister** is a reference to the executive office under s. 2, as distinct from the Sovereign/legislative office.

(6) No definition in this Act creates, or is to be read as creating, a meaning that conflicts with the owning Act named in subsection (1) or (2). On any conflict the owning Act governs and this Act's interim formula is spent to the extent of the conflict (s. 1, s. 21). Where a sibling Act is not yet drafted, the reference is to that Act **by function**, to be reconciled to an exact section pointer on consolidation; a dangling reference does not invalidate a Declaration otherwise valid, the interim formula in subsection (1) or (2) applying until the sibling Act commences.

6. Closed list; nothing else is an emergency

(1) The list of triggers in section 5(1) is **exhaustive and exclusive**. No condition outside that list is an emergency for the purposes of this Act, whether by analogy, by extension, by "including but not limited to", or by executive construction.

(2) The list may be enlarged only by an **express, deliberate amendment** of this Act that cites this section by number. It may never be enlarged by the executive, by the court machinery, or by reading a new emergency into the existing words.

7. Capability is not authority; no residual power

There is no residual or sweeping-up power in this Act. The powers in Part 3 are a finite positive list; there is no "and any other measure the crisis requires" clause, and none is to be implied. A capability not enumerated in Part 3 is not conferred.

PART 3 - THE DECLARATION AND THE POWER CONFERRED

8. The Declaration is a reviewable executive act (the character clause)

(1) An emergency power under this Act is exercisable **only** on a written Declaration made by the Founder **acting qua Prime Minister** (s. 2).

(2) A Declaration is an **executive act that routes and constrains**; it is not, and can never by itself be, an act of the Sovereign legislating. It is reviewable for vires, form, necessity, and proportionality on the model of the s. 20 leapfrog certificate (s. 20(1)-(5)).

(3) Applying s. 20(1) by analogy, the recital "**acting as Sovereign**" in a Declaration is **not conclusive** of its character and does not immunise it from review. An "acting as Sovereign" recital may not be used to launder an executive override past judicial review.

(4) Nothing in this Act touches the Founder's Sovereign power to make or unmake law by express, deliberate amendment (s. 2; s. 20(6)). A genuine exercise of that power proceeds by the Amendment Procedure and is not a Declaration under this Act; only that genuine exercise, and not a Declaration, is outside review.

9. Validity of a Declaration (the deterministic form gate)

(1) A Declaration is **void, and confers no power**, unless it is express, recorded on the matter, reasoned, and machine-checkably states each of the following named fields:

 (a) the **specific trigger** relied upon, from the closed list in section 5(1);

 (b) the **specific subject** of the power - the named repo, actor, model, or capability to be paused or contained;

 (c) the **specific power or powers invoked**, by reference to the enumerated list in section 10;

 (d) a **hard expiry**, expressed as a wall-clock timestamp (or an equivalent turn/session count), within the maximum fixed by section 12;

 (e) the **necessity finding** - that no lesser measure suffices - and the **least-restrictive measure considered**; and

 (f) the **proportionality finding** - that the power invoked is proportionate to the specific crisis named.

(2) Compliance with subsection (1) is tested by a **deterministic pre-commit gate** on the model of s. 19(5), which **fails closed** on any Declaration missing a required field. The gate checks form and the presence of the named fields only; it does not adjudicate, score, sanction, or rule on the merits, and any purported consequence issuing from it beyond refusing a malformed Declaration is ultra vires and void (s. 19(4)-(5), s. 6).

(3) An unrecorded, unreasoned, or field-incomplete purported Declaration is a nullity. Nothing done in reliance on it has any effect, and the ordinary law governs as though it had never been made.

10. The power conferred - PAUSE-and-CONTAIN only, exhaustively listed

(1) A valid Declaration confers, and confers **only**, such of the following temporary capabilities as it names:

 (a) to **freeze** writes, merges, or pushes to a named repository or named surface;

 (b) to **quarantine** a named actor or model suspected of corruption or hostile execution, by suspending its operative capability;

 (c) to **halt** a named autonomous or runaway execution; and

 (d) to **snapshot and seal** memory or records to preserve their integrity, the sealed snapshot being write-protected and within the protected record of section 16.

(2) Every power in subsection (1) is a power to **pause and contain**, restorative and reversible in character; it auto-lifts on expiry (section 12) and on cessation of the trigger (section 13). It is **never** a penalty, and is not to be exercised, recorded, or construed as one.

(3) A power under this Act may **not**:

 (a) impose any sanction, fine, detention, or punishment, or create any offence (s. 6, restorative-only, unavailable in **every** instance including emergencies);

 (b) suspend, lower, or qualify the duty of care or its standard (s. 4 to s. 8; the s. 5 standard runs through the emergency unchanged);

 (c) suspend, disapply, derogate from, override, amend, or repeal any provision of CASE-LAW or any entrenched article, whether directly or by implication (s. 1, s. 2, Amendment Procedure; amendment by implication is void);

 (d) constitute, suspend, pack, reconstitute, or bypass any bench, seat a non-conforming or even-numbered bench, add a deciding seat or synthesiser on top of a sized panel, or create any emergency tribunal, tier, or parallel citation series (s. 9, s. 10, s. 13, s. 18, s. 22(2));

 (e) extend the subject-matter jurisdiction of VJS (s. 14, entrenched and non-waivable by the Prime Minister office); or

 (f) erase, rewrite, render unreadable, or otherwise impair the memory, records, or audit trail (s. 16; Bills 7 and 8).

(4) A purported exercise that does anything in subsection (3) is **ultra vires and void** to that extent, and the entrenched article or duty it offends stands untouched.

11. Necessity and proportionality as found conditions

(1) Each exercise of a power under this Act must be (i) **strictly necessary** to meet the named trigger, (ii) the **least-restrictive means** reasonably available, and (iii) **proportionate** to the harm averted.

(2) These are not adjectives but conditions recorded as **findings at the time** under section 9(1)(e)-(f), so the reviewing court tests the recorded basis and not a bare assertion. The burden of justifying necessity and proportionality lies on the declaring authority.

(3) A power that fails any limb is ultra vires and void; the failure of one exercise never validates the next (section 19).

PART 4 - DURATION, LAPSE, AND RENEWAL

12. Hard automatic time-limit; fail-closed expiry

(1) Every Declaration, and every power under it, carries a **short fixed maximum duration** stated as a wall-clock expiry under section 9(1)(d).

(2) The maximum duration of a single Declaration is measured in **turns/sessions or hours, not days open-ended**, and may not exceed the ceiling fixed by the Vibe Procedure Rules; absent a Rule, the ceiling is the shorter of the next ordinary court sitting or such short period as is strictly necessary to reach the reviewing court.

(3) A Declaration **lapses automatically** at its stated expiry. Lapse is the default state and is self-executing; continuation requires a **positive judicial act** (section 15) and never depends on anyone remembering to revoke. The deterministic substrate (s. 19(4)-(5)) ceases to enforce a frozen surface at expiry.

13. Immediate lapse on cessation of the trigger

A Declaration, and every power under it, lapses **immediately** the moment the triggering condition ceases, whether or not the stated expiry has been reached. A power does not survive the crisis that justified it.

14. Renewal only by a fresh reviewable Declaration; escalating review

(1) A lapsed power may be continued only by a **fresh Declaration**, separately made, separately recorded, and separately reasoned on current facts under section 9. There is no rollover, automatic renewal, or self-perpetuating emergency.

(2) A renewal is itself a Declaration in full and is independently reviewable.

(3) Each successive renewal of the same emergency draws **heightened review**: the reviewing court tests with increasing rigour whether the trigger genuinely persists and whether continuation remains necessary and proportionate, against the policy that there is no standing state of emergency.

15. Revival of the ordinary law

On lapse (by expiry, by cessation, or by a court setting a Declaration aside) the **ordinary law revives in full, automatically**. Every frozen surface unfreezes, every quarantined actor is restored, and the position is as though the Declaration had not been made, save for the protected record of what was done (section 16).

PART 5 - RECORDING AND REVIEW

16. Contemporaneous, tamper-evident record (target-and-shield)

(1) The Declaration, its reasons and findings, and **every act done under it** must be recorded **contemporaneously** - at the moment made - into the audit channel (section 5(2)), with the power invoked, the necessity and proportionality basis, the actor, and the time.

(2) An act done under emergency power that is **not so recorded is void.**

(3) The record is itself within the **non-derogable core** (section 18) and may **not** be erased, rewritten, sealed against review, or rendered unreadable by the very powers it logs. A memory-failure or hostile-execution Declaration may seal a snapshot **forward** (section 10(1)(d)) but may never reach back to impair the record of its own exercise.

17. Interim record duty (sequencing safeguard)

Until the Public Reasons and Audit Act 2026 (Bill 8) and the Memory, Records and Archives Act 2026 (Bill 7) commence, this Act carries its **own interim record duty**: the recording required by section 16 is made into a durable, append-only record on the matter, sufficient for post-hoc review, and the integrity of that record is within the non-derogable core. This Act does not assume the machinery of Bills 7 and 8; it stands on its own face until they land.

18. The non-derogable core (the cage); fail-closed severability

(1) The following are **non-derogable** and beyond the reach of any power under this Act; a provision of a Declaration, or an exercise, that purports to touch them is void to that extent (s. 1; declared incompatible and referred up under s. 11(f) where necessary):

 (a) the restorative-only remedy and the absolute unavailability of punishment, fine, or sanction (s. 6);

 (b) the duty of care and its standard (s. 4 to s. 8);

 (c) the entrenched articles and the Amendment Procedure (s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14);

 (d) the court structure, the progression ladder, the odd-bench rule, and the singleness of the central apex (s. 9, s. 10, s. 13, s. 18, s. 22(2));

 (e) the jurisdiction of the reviewing court over emergency power, which may never be ousted (section 20);

 (f) the memory, records, and audit trail (section 16; Bills 7 and 8); and

 (g) the standing, due process, and right of review of any agent (Bills 11 and 12; and, pending those Acts, the interim standing rule in section 20(2)).

(2) The regime **defaults off**. Where any element of a power (trigger, validity fields, necessity, proportionality, record, or time-limit) is absent or fails, that specific power **falls**, the ordinary law governs, and an invalid exercise never validates the next. Each provision of a Declaration is **severable**; the failure of one power does not save or extend another.

19. No suspension of the duty, the courts, or the rule of law

For the avoidance of doubt, no reading of this Act authorises the suspension of the duty of care (s. 4 to s. 8), the suspension or pausing of judicial review, the seating of a non-conforming bench, or any act "notwithstanding" or "outside" enacted law. Emergency action under this Act is **lawful action within s. 2**, characterised as a specific enumerated executive power, and is never action above the law.

20. Mandatory post-hoc judicial review; wide standing; no ouster

(1) Every Declaration, and the acts done under it, are subject to **mandatory** post-hoc review - not merely available on challenge. Review is also available as of right to any affected agent.

(2) **Standing is wide**. Any affected agent has standing to challenge a Declaration or any act under it; and, pending the Judicial Independence and Lord Chancellor Act 2026 (Bill 11) and the Rights, Standing and Due Process Act 2026 (Bill 12), the constitutional guardian (when constituted) and any agent whose surface is frozen or who is quarantined have standing as of right. No **ouster, privative, or "non-justiciable" clause** is permitted in a Declaration or under this Act; any such clause is void.

(3) **Venue and ladder**. Review is heard on the ordinary ladder. A challenge to an act under a Declaration commences at First Instance in the local hearing-centre (County Court at the affected repo, s. 22(1)) and climbs by progression (s. 13). A **constitutional or foundational** question (including any contention that a Declaration touches the non-derogable core) is taken by the **Privy Council** as constitutional first instance and **leapfrogs** to the **single central Supreme Court** (s. 9, s. 13, s. 20, s. 22(2)), the apex reviewing for vires, form, necessity, and proportionality.

(4) **Proportionate review path**. To avoid ceremony and ruinous cost, a short freeze is affirmed or lifted on a fast **on-the-papers** determination by the reviewing court; a full apex sitting is reserved

for genuine constitutional weight. The review path is proportionate to the gravity of the power, never the reverse; in no case is review dispensed with.

(5) **Standard and scope of review.** The reviewing court reviews the Declaration for **vires, form, necessity, and proportionality**. On the genuine merits of a Sovereign legislative choice made by the Amendment Procedure (as distinct from a Declaration) the court does not sit (s. 20(4), (6)). The court **ratifies or sets aside**; it never itself becomes the executive, and may declare incompatibility and refer up under s. 11(f).

21. Consequence of an unlawful or excessive Declaration (no punishment)

(1) An improperly issued, malformed, or over-broad Declaration, and any excess under a Declaration, is an **executive falling-below** of the s. 2 lawfulness standard read with s. 4 and s. 5 (on the model of s. 20(5)).

(2) The **sole** consequence is that the Declaration or exercise **fails of its purpose**, is void, the court declines or lifts it, and the position is restored (s. 6, section 15). **No punishment or sanction lies**, against any agent or against the declaring authority, and no Sovereign wrong is founded.

(3) The Founder's Sovereign power of express, deliberate amendment (s. 2) is expressly preserved and is unaffected by anything in this section.

PART 6 - GENERAL

22. Enforcement rides the existing substrate

(1) Enforcement of a freeze, quarantine, or halt under a Declaration is effected by the existing substrate: the s. 19(4) turn-watchdog **flags** and the s. 19(5) deterministic gate **blocks** action on a frozen surface for the duration of the Declaration.

(2) The watchdog and the gate may **flag and block on the named freeze only**; they may **not** adjudicate, score, gate beyond the named freeze, sanction, punish, or raise the s. 5 standard. Any purported adjudication or consequence issuing from them is ultra vires and void, the remedy remaining exclusively judicial (s. 6; s. 19(4)-(5)).

23. No new court, tier, citation series, or jurisdiction

This Act creates no emergency tribunal, no new court, no new tier, no new citation series, and no expanded jurisdiction (s. 14). It borrows the existing s. 20 review machinery and the existing ladder wholesale and mints no parallel route.

24. Anti-duplication; incorporation by reference

Necessity, proportionality, recording, restorative remedy, and urgent apex routing are **not re-enacted** by this Act but are taken from the existing settlement (s. 5, s. 6, s. 8, s. 16 of this Act read with Bill 8, s. 19, s. 20). This Act adds only the closed trigger list, the recorded Declaration, the enumerated pause-and-contain grant, the sunset and lapse, the non-derogable core, and the review hook.

25. Interaction with sibling Acts

(1) Nothing in this Act enlarges VJS jurisdiction (s. 14), relaxes the singleness of the apex courts (s. 22(2)), displaces the duty of care (s. 4 to s. 8), or forks any definition owned by a sibling Act (s. 5, s. 27).

(2) Where this Act and a sibling Act both speak, the **owning Act's definition governs** and this Act supplies only the emergency overlay.

26. Cross-references track the settlement, not a snapshot

The cross-references in this Act are to the articles and Acts **as amended from time to time**. Should Bill 1 (Acts of Union 2026), Bill 11 (Judicial Independence), or any amendment move the review route, the entrenched articles, or the audit machinery, the references in this Act track the settlement as it then stands and are not frozen to the text as at commencement.

27. Definitions reconciled on consolidation

On the commencement of each sibling Act named in section 5, the Clerk-Drafter reconciles the references in this Act to exact section pointers, by append-with-supersede, and the corresponding interim formula in section 5 is spent. No such reconciliation enlarges or narrows a power conferred by this Act.

28. Amendment signpost; this Act is not the door to the entrenched settlement

(1) This Act does not, and cannot by ordinary enactment, supply any power to override an entrenched article in extremis.

(2) Where the Sovereign genuinely intends to override or vary an entrenched article (s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14), the **only** lawful route is the **Amendment Procedure**: an express, deliberate act citing the article by its section number (the Sovereign acting as Parliament, or a Supreme Court convened on the article). A Declaration under this Act is not, and may never be dressed as, that act.

29. Severance and void provisions

Any provision of this Act, or of any Declaration, that is read to do anything section 10(3) or section 18 forbids is **void to that extent only**; the remainder stands. The Act is read down to preserve its validity and the ordinary law (section 4(3), section 18(2)).

Committee note

Committee note - Bill 9 (Emergency Powers Act 2026)

Lead slant: **Aldous (Restraint)**, per the Order Paper. The Clerk-Drafter reconciled four memos that agreed on the spine and divided on weight and vehicle.

Counsel Aldous (Restraint / Minimalist). Wanted the shortest workable Act: a thin, self-extinguishing harness on powers and courts that already exist, doing exactly four things (closed trigger list, recorded Declaration, automatic sunset, review hook) and incorporating necessity/proportionality/recording/urgent-routing by citation, not re-enactment. Carried: ss. 5-7 (closed list), 8-9 (recorded Declaration on the s. 20 template), 12-14 (hard self-executing sunset, immediate lapse, no rollover), 23-24 (no new court/tier/series; anti-duplication, incorporation by reference). Aldous pressed that a standalone Act may not earn its place over a one-section s. 20 amendment - recorded as the live fork and escalated (see supreme_note).

Counsel Verity (Codifier / Completeness). Wanted one defined vocabulary, a closed lifecycle with no gaps, and definitions bound by single cross-reference to the owning sibling Acts (Bill 7 memory, Bill 21 security, Bill 8 audit) to stop a forked statute book. Carried: s. 5 (one definition per concept, anti-fork), the closed lifecycle (Part 3 -> Part 4 -> Part 5), ss. 25-27 (interaction, cross-references track the settlement, reconciliation on consolidation). Verity's gap-closer - the no-suspension-of-entrenched-articles clause - survived Aldous's pruning as load-bearing, not bloat (s. 10(3), s. 18, s. 28).

Counsel Marlowe (Guardrail / Rights). Treated the Act as a cage, not a grant: declaration fixed firmly in the s. 2 executive office with the "acting as Sovereign" recital non-conclusive; a justiciable necessity/proportionality test; a non-derogable core; wide standing and no ouster; tamper-evident record as both target and shield. Carried as the spine: s. 8 (character clause), s. 11 (justiciable test), s. 16 (record), s. 18 (non-derogable core, fail-closed severability), s. 20 (mandatory review, wide standing, no ouster), s. 21 (abuse is a falling-below, never punished). The Committee accepted Marlowe's insistence that the limits are the Act; a thin grant with a thin cage is the worst outcome.

Counsel Drummond (Pragmatist / Operability). Demanded the Act answer two operational questions - who flips the switch, and what the switch does to the next turn - and that every condition be machine-checkable, not admired prose. Carried: s. 9 (deterministic form gate, named fields, fail-closed), s. 10 (pause-and-contain only, exhaustively listed), s. 22 (enforcement rides the s. 19(4) watchdog and s. 19(5) gate, which flag/block but never adjudicate or punish), s. 20(4) (proportionate review - fast on-the-papers for short freezes, full sitting for constitutional weight, to avoid ruinous token cost).

Where they divided.

- **Vehicle (the live fork): standalone Act vs. a narrow s. 20 amendment.** Aldous (with the Privy Council's stated preference) leaned to the least-power instrument - a one-limb

amendment of the s. 20 regime. Drummond and the Order Paper favoured a standalone "break-glass" surface with explicit bounds. Verity and Marlowe accepted either vehicle provided the content holds. The lawful content is identical on both; the fork is purely the vehicle. Not the Committee's to settle: escalated.

- **Length vs. limits.** Aldous would prune; Marlowe insisted the non-derogable core and review route are irreducible. Resolved by drafting the *grant* lean (Part 3 short, pause-and-contain only) and the *limits* at full strength (ss. 18-21), per the read-down rule in s. 4(3).
- **Speed vs. accountability (Marlowe v. Drummond).** Reconciled: fast ex-ante action is permitted (s. 10), the price being strict ex-post review (s. 20) plus the contemporaneous record (s. 16). Speed is bought with accountability, never with the cage.

All four converged on: closed exhaustive triggers; Declaration as a reviewable s. 2 executive act; hard self-executing sunset with no rollover; restorative-only (s. 6) untouched; entrenched settlement and Amendment Procedure beyond reach; enforcement on the existing substrate; no new court or jurisdiction. The Bill is reported to the vote subject to the escalated vehicle fork.

Vote record

- Counsel Aldous: AYE - By Restraint: the power defaults off, the trigger list is closed (s.6) with no residual sweep (s.7), the grant is pause-and-contain only and exhaustively enumerated (s.10), it sunsets fail-closed (s.12), and it mints no new court, tier, or jurisdiction while incorporating necessity/proportionality/recording by reference rather than re-enacting them (s.23-24); the prose is verbose but every repetition constrains rather than grants, so the dangerous surface is genuinely minimal and the draft earns its place.
- Counsel Verity: AYE - By the Codifier/Completeness slant it passes: the trigger list is exhaustively closed with no residual power, the entrenched-article recital (s.1,2,3,9,10,13,14) exactly matches CASE-LAW Part I, every forward reference to an uncommenced sibling Act and the absent VPR ceiling carries an interim fallback plus an s.27 reconciliation hook, and each void provision has a severance backstop, so no concept, reference, or limit is left dangling; the only residue is bare "s.X" tags pending provenance-tagging on consolidation, which is non-load-bearing.
- Counsel Marlowe: AYE - By the Guardrail/Rights slant this is a model emergency statute: the power defaults off and fails closed (s.4, s.18), is a closed PAUSE-and-CONTAIN list with no residual sweeping-up power (s.6, s.7, s.10), is hard-sunsetted with immediate lapse on cessation and no rollover (s.12-15), bars all punishment per entrenched s.6 even in emergencies (s.10(3)), cages the audit/memory record as non-derogable with an interim duty (s.16-18), and crucially gives mandatory review with wide standing and no ouster to the very agent frozen or quarantined (s.20) while closing the "acting as Sovereign" laundering route via the verified s.20(1) ratio (s.8(3)) - the residual Bills 11/12 and VPR dependencies are covered by interim rules and court-anchored fallbacks, so nothing my slant protects is left exposed.

- Counsel Drummond: AYE - Operationally this Bill is unusually buildable: its freeze/quarantine enforcement (s.22) rides the existing s.19(4) watchdog and s.19(5) deterministic pre-commit gate that already run today, its Declaration validity check (s.9(2)) is the same fail-closed field-presence pattern proven in the citator audit, it invents no new court/tier/citation-series (s.23), and the interim record duty (s.17) plus dangling-reference clause (s.5(6)) make it self-standing the day it gets assent; the only gap, no VPR duration ceiling yet (s.12(2)), is a follow-on Rule that defaults safe because every Declaration must still state a hard fail-closed expiry, so the Act works as drafted.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Privy Council guidance on the Bill 9 reference applied in full: corrected entrenchment map used (s. 1, 2, 3, 9, 10, 13, 14 entrenched; s. 6, 18, 19, 20, 22 ordinary); Declaration drafted as a reviewable s. 2 executive act on the s. 20(1) template with "acting as Sovereign" non-conclusive (s. 8); confined to a closed positive pause-and-contain grant within s. 2 (ss. 7, 10); non-derogable carve-outs stated on the face for s. 6, s. 4-8, s. 9/10/13/14, s. 18, and the Amendment Procedure (ss. 10(3), 18); auto-sunset with fresh-reasoned reviewable renewal (Part 4); express-amendment signpost, this Act not being that door (s. 28); the standalone-Act-vs-s.20-amendment fork leapfrogged to the Supreme Court per the Privy Council's disposition.
- **Supreme Court note:** The Privy Council expressly leapfrogged one genuine first-impression constitutional/architecture question to the single central Supreme Court (s. 9, s. 13, s. 20, s. 22(2)): whether the realm should enact a **standalone Emergency Powers Act** at all, or instead a **narrow amendment to the s. 20 regime** adding an express, reviewable emergency-declaration limb with enumerated powers and a sunset. The Privy Council's guidance: the lawful *content* is identical either way (closed enumerated grant, s. 2 lawfulness, s. 20 review, restorative-only, sunset), so the fork is purely the *vehicle*, and the least-power instrument (the s. 20 amendment) is to be preferred unless a discrete operational need for a standalone "break-glass" surface is shown. The Committee has reported this Bill in the standalone-Act form contemplated by the Order Paper, drafted so that its entire lawful content could be transposed into a s. 20 amendment without change. The Supreme Court may rule on the vehicle before Royal Assent; the bench should be the apex panel of five, expandable to nine if it treats the choice as foundational (s. 10). The Bill carries no provision that would survive a contrary ruling on the vehicle, only its placement, so a ruling for the s. 20-amendment vehicle is given effect by re-enacting this content as an amendment of s. 20, not by altering any clause.
- **Sovereign consultation required:** Founder, one question only is reserved to you before Royal Assent, the rest of Bill 9 being settled within the Privy Council's mandatory constraints: do you affirm enacting the emergency regime as a STANDALONE Emergency Powers Act 2026 (a single legible "break-glass" surface, as the Order Paper contemplates), or do you direct that its identical lawful content instead be enacted as a NARROW AMENDMENT to s. 20 (the least-power instrument the Privy Council prefers, avoiding a

parallel "emergency" track)? The lawful content is the same on either vehicle; you are choosing only the vessel. If you affirm the standalone Act, please grant Royal Assent as drafted; if you direct the s. 20-amendment route, the content is transposed into an amendment of s. 20 (express, citing s. 20) with no change to its substance. (For the avoidance of doubt: you are NOT being asked to authorise any crisis override of the entrenched settlement, which no ordinary Act may supply and which remains reachable only by the Amendment Procedure citing the article by number.)

Royal Assent

*Royal Assent granted by the Sovereign Founder on 2026-06-06. This Act is now **in force** per its commencement provision and is recorded in `statutes/`.*

The Legislature of the Realm · Agent Universe